

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 541

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO ENTICING A CHILD; AMENDING SECTION 18-1509A, IDAHO CODE, TO RE-
VISE A PROVISION REGARDING ENTICING A CHILD THROUGH USE OF THE INTER-
NET OR OTHER COMMUNICATION DEVICE, TO DEFINE A TERM, AND TO MAKE TECHNICAL
CORRECTIONS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE
DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 18-1509A, Idaho Code, be, and the same is hereby
amended to read as follows:

18-1509A. ENTICING A CHILD THROUGH USE OF THE INTERNET OR OTHER
COMMUNICATION DEVICE -- PENALTIES -- JURISDICTION. (1) A person ~~aged~~ eigh-
teen (18) years of age or older shall be guilty of a felony if such person
knowingly uses the internet or any device that provides transmission of
messages, signals, facsimiles, video images, or other communication to
solicit, seduce, lure, persuade, or entice by words or actions, or both, a
~~person under the age of sixteen (16) years~~ child or a person the defendant
believes to be ~~under the age of sixteen (16) years~~ a child to engage in any
sexual act with or against the person where such act would be a violation of
chapter 15, 61, or 66, title 18, Idaho Code.

(2) Any person who is convicted of a violation of this section shall be
punished by imprisonment in the state prison for a period not to exceed fif-
teen (15) years.

(3) It shall not constitute a defense against any charge or violation of
this section that a law enforcement officer, peace officer, or other person
working at the direction of law enforcement was involved in the detection or
investigation of a violation of this section.

(4) In a prosecution under this section, it is not necessary for the
prosecution to show that an act described in chapter 15, 61, or 66, title 18,
Idaho Code, actually occurred.

(5) The offense is committed in the state of Idaho for purposes of de-
termining jurisdiction if the transmission that constitutes the offense ei-
ther originates in or is received in the state of Idaho.

(6) As used in this section, "child" means:

(a) A person under sixteen (16) years of age; or

(b) A person who is sixteen (16) or seventeen (17) years of age when the
perpetrator is at least five (5) years of age older.

SECTION 2. An emergency existing therefor, which emergency is hereby
declared to exist, this act shall be in full force and effect on and after
July 1, 2026.